

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

JASON SANTOS

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND P. O. JAJI, 48th PRECINCT,
IN HIS INDIVIDUAL CAPACITY, P. O. PEREZ, 48TH PRECINCT,
IN HIS INDIVIDUAL CAPACITY AND SGT. PENA, SHIELD No. 5136,
48th PRECINCT, IN HIS INDIVIDUAL CAPACITY

Defendants,

X

SUMMONS

Index No.

Date Index No. Purchased

02/10/2023

Plaintiff Designates Bronx County
as Venue of Trial Pursuant
to CPLR Section 503 Residency

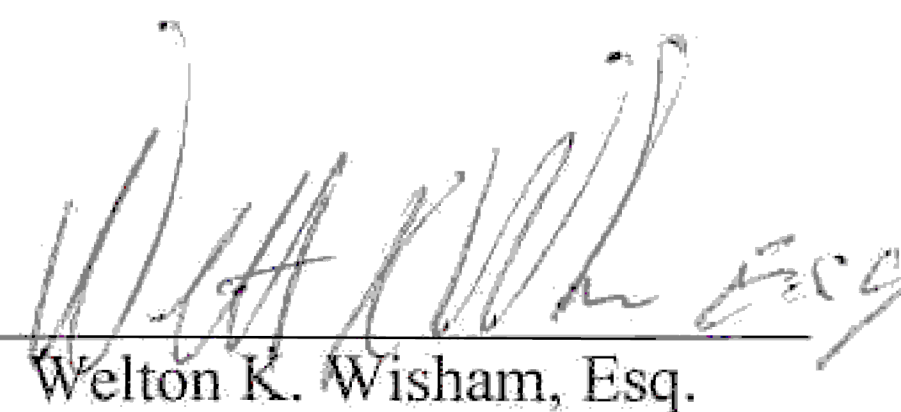
You are hereby summoned to answer the complaint in this action and to serve a copy

of your answer or if the complaint is not served with this summons, to serve a notice of appearance
on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the
day of service (or within 30 days after the service is complete if this summons is not personally
delivered to you within the State of New York) and in case of your failure to appear or answer,
judgment will be taken against you by default for the relief demanded in the complaint.

Dated: February 9, 2023

Bronx, New York

By



Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office
718-678-8062 Fax

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

JASON SANTOS

Plaintiff,

- against -

ECF
Complaint
Index No.
Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND P. O. JAJI, 48th PRECINCT,
IN HIS INDIVIDUAL CAPACITY, P. O. PEREZ, 48TH PRECINCT,
IN HIS INDIVIDUAL CAPACITY AND SGT. PENA, SHIELD No. 5136,
48th PRECINCT, IN HIS INDIVIDUAL CAPACITY

Defendants,

X

Plaintiff, Jason Santos ,by his attorney, Welton K. Wisham of The Law office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, and Police Officers Jaji, Perez and Sgt Pena who are believed to be assigned to the 48th police precinct located at 450 Cross Bronx Expressway, that ;

PRELIMINARY STATEMENT

1. This action arises out of the Defendants' roles in inflicting unreasonable force upon Plaintiff Jason Santos during the course of Plaintiff's arrest on May 31, 2022.
2. Plaintiff Santos was arrested and held in custody by the underlying police officers due to a domestic dispute.
3. Mr. Santos was held in custody at the 48th precinct police department where Plaintiff was viciously attacked by one of the Defendant officers inside a holding cell as the other officers stood by and failed to intervene.
4. One of the Defendant officers knowingly and willfully assaulted and battered Mr. Santos with a closed fist that struck Plaintiff's face and ear.

5. The force inflicted upon the Plaintiff was fierce, excessive and unreasonable and caused Plaintiff to suffer severe pain and agony and loss of hearing causing Plaintiff to seek emergency medical care at the precinct.

6. Mr. Santos was taken by ambulance from the 48th police precinct to St. Barnabas Hospital located at 4422 Third Ave. Bronx, New York where he received treatment for injuries to his face and ear.

7. Plaintiff now seeks financial compensation for damages to his face , body and ear caused and inflicted by the Defendant officers who engaged in excessive and unreasonable force without justification.

8. Officers Jail, Perez and Pena as state officers, acted within the scope of their employment and under color of law as New York City Police officers.

9. Mr. Santos seeks compensation for the officer's unreasonable seizure, and excessive and unreasonable use of force in violation of the Fourth, and Fourteenth Amendments to the Constitution of the United States, pursuant to 42 U.S.C. Section 1983 and New York State Law.

10. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

11. This Court has personal jurisdiction over the Defendants because the defendants committed the tortuous acts within the State of New York, Bronx County, causing injury to the Plaintiff.

12. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated upon 42 U. S. C. Section 1983.

VENUE

13. This action is brought in Supreme Court Bronx County. Venue is predicated upon CPLR Section 503 due to Plaintiff's residence at the time this action is commenced.

14. CPLR 503 is the appropriate venue due to the fact that the allegations contain within Plaintiff's Complaint and the acts and allegations substantially occurred in Bronx County.

PARTIES

15. At all times hereinafter mentioned throughout this Complaint, Plaintiff Jason Santos is a citizen of the United States of America.

16. Plaintiff resides in Bronx, County.

17. Defendant, Police Officers, Jajl, Perez and Sgt Pena are believed to be assigned to the 48th police precinct located at 450 Cross Bronx Expressway who were at all times relevant herein, duly appointed police officers employed by the New York City Police Department.

18. Officers Jajl, Perez and Sgt Pena at all times herein were acting under color of State law and within the scope of their employment as police officers on the date of Plaintiff's arrest.

19. The Defendant, City of New York is a municipal corporation within the State of New York Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

20. At all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

21. The individual defendants involved in the incident underlying this lawsuit were at all times mentioned in this Complaint agents, servants and employees acting within the scope of their employment by Defendant City of New York and were duly appointed police officers in the

New York City Police Department acting in their official capacity and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York and the City of New York.

JURY DEMAND

22. Plaintiff demands trial by jury.

NOTICE OF CLAIM

23. On or about August 30, 2022, Plaintiff, in furtherance of his New York State causes of action, filed a timely Notice of Claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officer, Detective Sheldon C. Franklyn, in compliance with General Municipal Law Section 50-h.

24. On September 7, 2022, the Comptroller of the City of New York acknowledge receipt of Mr. Santos' timely filed Notice of Claim by assigning Claim Number 2022PI025325.

25. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

26. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

27. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

28. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

29. That by reason of the foregoing, Plaintiff, Jason Santos has been damaged in a

sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

30. Plaintiff Jason Santos was arrested and held in custody by the underlying police officers on May 31, 2022, stemming from a domestic dispute.

31. Mr. Santos was taken into custody and held at the 48th police precinct.

32. The Defendant officers took Mr. Santos into a holding cell occupied by one other pretrial detainee.

Shackled and beaten inside cell

33. Two of the Defendant officers placed Plaintiff inside the holding cell.

34. The officers searched Mr. Santos inside the holding cell.

35. Mr. Santos was handcuffed and to curse the officers for the officers' aggressive use in placing the handcuffs on the Plaintiff.

36. The officers got upset and began forcibly grabbing and squeezing Mr. Santos' arms causing Plaintiff to yell out in pain.

37. The officers then threatened to use force against Mr. Santos by telling Plaintiff, "**You ant gonna like this**"!

38. The officers, without legal justification then shackled Mr. Santos' feet, arms and waist to a bench inside the holding cell.

39. Mr. Santos began to yell and scream that the officers were abusing their authority by placing shackles around his body without justification.

40. Mr. Santos was afraid that the other inmate inside his cell would harm him because Plaintiff's movement was severely restricted due to the restraints placed around Plaintiffs' legs.

waist and arms as he was restrained to a bench, unable to move while the other unknown inmate was left free to roam throughout the cell causing Mr. Santos alarm and undue mental stress.

41. The officers ignored Plaintiff's restrictive condition and left Mr. Santos tied to the bench inside the holding cell, in shackles.

42. That as Plaintiff was yelling and complaining about being placed in three iron restraints, officers Jaji, Perez and Sgt Pena came back inside Plaintiff's cell with anger shown on their faces.

43. One of the officers told Mr. Santos " We gonna get these handcuffs off you "!

44. However, as Mr. Santos stood up to allow the officers to remove the handcuffs, one of the officers suddenly grabbed Plaintiff's by his hair and started pulling Mr. Santos' hair while another officer grabbed Plaintiff's arms. The other officer stood by and watched and failed to intervene

45. Suddenly and without provocation, one of the Defendants started punching the Plaintiff in Plaintiff's head and ear.

46. The officers left Santos in his in-agony cell as Plaintiff continue to scream out in pain.

47. Mr. Santos stated yelling and screaming that " I need an ambulance, I can't hear"! The officer came back inside the cell and told Mr. Santos that the ambulance was coming.

48. Approximately fourth (40) minutes later, an ambulance came to the precinct and took Plaintiff to St. Barnabas Hospital.

49. Mr. Santos' ear was damage from the police suffered headaches and dizziness due to the officer's unprovoked attacked.

50. That one of the officers punched Mr. Santos in his face and ear as Plaintiff was still constrained by the shackles around his legs, waist and arms.

51. Mr. Santos was left in excruciating pain throughout his face and ear.
52. The assault against Plaintiff Santos caused Mr. Santos to lose the ability to hear out of one ear.
53. The loss of hearing continued for several days after the initial assault.
54. Mr. Santos was taken by ambulance from the 48th police precinct to St. Barnabas Hospital located at 4422 Third Ave. Bronx, New York where he received emergency medical treatment for his injuries inflicted upon him by the Defendants.
55. Mr. Santos is now seeking compensation for the excessive and unreasonable force inflicted upon him by officers Jaji, Perez and Sgt Pena, members of the New York City Police Department 48th police precinct.
56. The officers acts were conducted under color of law and within the scope of their employment as police officers of the New York City Police Department.
57. The seizure by officers, Jaji, Perez and Sgt Pena was objectively unreasonable and was intended to punish Plaintiff for cursing the officers.
58. The assault against Mr. Santos caused Plaintiff to suffer physical and emotional pain, embarrassment and humiliation caused by the Defendant officers without legal justification.
59. The acted with deliberate indifference to the Plaintiff's Constitutional rights to be free of unwarranted force and punishment without due process of law.

Injuries: St. Barnabas Hospital

60. The physicians at St. Barnabas indicated in the medical reports that Mr. Santos had experienced and complained of left ear pain that was recorded as 10 out of 10 that was caused by the police.
61. Plaintiff had abrasions on his shin from the shackles.

62. Plaintiff was diagnosed with ringing in his left ear with persistent pain.

June 6, 2022 Medical Treatment

63. On June 6, 2022, Mr. Santos continued to suffer pain and headaches from the police assault on May 31, 2022, and sought additional medical treatment at St. Barnabas Hospital on June 6, 2022.

64. Mr. Santos complained of persistent pain in his left ear and that the pain was getting worse than that experienced on May 31, 2022.

65. Plaintiff was given Tylenol and Motrin for the pain and released.

June 10, 2022, St. Barnabas

66. That on June 10, 2022, Mr. Santos continued to experience pain and hearing loss in his left ear and sought medical treatment at St. Barnabas Medical Hospital in the Bronx, New York.

67. Plaintiff was diagnosed with left ear trauma with pain and hearing loss.

68. An audio loss was performed by the attendants at St. Barnabas.

July 19, 2022, Medical Treatment.

69. On July 19, 2022, Mr. Santos sought and received medical treatment for the continued pain and suffering inflicted upon him by the Defendants police officers on May 31, 2022 inside the 48th police precinct holding cell.

70. Jason Santos now seeks adequate compensation against the Defendants pursuant to 42 U.S.C Section 1983, and New York State Law, Article 1, Section 12 and under the Common Law of the State of New York for the pain and suffering and emotional trauma he was caused to suffer by the Defendants.

71. Plaintiff brings action against the Defendant for the Unreasonable Use of Force, Intentional Infliction of Emotional distress, Negligence, Negligent Infliction of Emotional distress, Violation

of Due Process of law pursuant to the Fourteenth Amendment to the Constitution of the United States, and Municipal liability for Respondeat Superior, and Assault and Battery pursuant to the Common law of the State of New York.

72. Plaintiff seeks a remedy pursuant to 42 U.S.C. Section 1983 and under New York State Law, Article I, Section 12, for the willful and deliberate violation of Claimant's constitutional rights to be free from unreasonable force and deprivation of due process of law pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

73. The violations of law as set forth above which gave rise to Plaintiff's claims as set forth herein were all caused by the intentional, negligent, reckless and deliberate acts of the New York Police Department, its agents, servants and the Respondent Police Officers.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS, P. O. JAJI, P.O. PEREZ, AND SGT. PENA FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEIZURE AND UNREASONABLE USE OF FORCE UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE CONSTITUTION OF THE UNITED STATES

74. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs 1 through 73, with the same force and effect as though more fully set forth at length herein.

75. Plaintiff Jason Santos was arrested and held in custody by the underlying police officers on May 31, 2022, stemming from a domestic dispute. All charges against Mr. Santos were favorable dismissed.

76. Mr. Santos was taken into custody and held at the 48th police precinct.

77. The Defendant officers took Mr. Santos into a holding cell occupied by one other pretrial detainee.

**Shackled and
beaten inside cell**

78. Two of the Defendant officers placed Plaintiff inside the holding cell.

79. The officers searched Mr. Santos inside the holding cell.

80. Mr. Santos was handcuffed and to curse the officers for the officers' aggressive use in placing the handcuffs on the Plaintiff.

81. The officers got upset and began forcibly grabbing and squeezing Mr. Santos' arms causing Plaintiff to yell out in pain.

82. The officers then threatened to use force against Mr. Santos by telling Plaintiff, "You ant gonna like this"!

83. The officers , without legal justification then shackled Mr. Santos' feet, arms and waist to a bench inside the holding cell.

84. Mr. Santos began to yell and scream that the officers were abusing their authority by placing shackles around his body without justification.

85. Mr. Santos was afraid that the other inmate inside his cell would harm him because Plaintiff's movement was severely restricted due to the restraints placed around Plaintiffs' legs, waist and arms as he was restrained to a beach, unable to move while the other unknown inmate was left free to roam throughout the cell causing Mr. Santos alarm and undue mental stress.

86. The officers ignored Plaintiff's restrictive condition and left Mr. Santos tied to the bench inside the holding cell., in shackles.

87. That as Plaintiff was yelling and complaining about being placed in three iron restraints, officers Jaji, Perez and Sgt Pena came back inside Plaintiff's cell with anger shown on their faces.

88. One of the officers told Mr. Santos " We gonna get these handcuffs off you "!

89. However, as Mr. Santos stood up to allow the officers to remove the handcuffs, one of the officers suddenly grabbed Plaintiff's by his hair and started pulling Mr. Santos' hair while another officer grabbed Plaintiff's arms. The other officer stood by and watched and failed to intervene

90. Suddenly and without provocation, one of the Defendants started punching the Plaintiff in Plaintiff's head and ear.

91. The officers left Santos in his in agony cell as Plaintiff continue to scream out in pain.

92. Mr. Santos stated yelling and screaming that " I need an ambulance, I can't hear"! The officer came back inside the cell and told Mr. Santos that the ambulance was coming.

93. Approximately fourth (40) minutes later, an ambulance came to the precinct and took Plaintiff to St. Barnabas Hospital.

94. Mr. Santos' ear was damage from the police suffered headaches and dizziness due to the officer's unprovoked attacked.

95. That one of the officers punched Mr. Santos in his face and ear as Plaintiff was still constrained by the shackles around his legs, waist and arms.

96. Plaintiff was harassed, beaten, arrested, ridiculed and humiliated by the Defendants police officers who use extreme and excessive, and unreasonable force in arresting Plaintiff Jason Santos as set forth more fully in the aforementioned \

97. Mr. Santos suffered significant multiple facial injuries to his face, and lost hearing in his ear for several days due to the force inflicted by the officers.

98. Emergency Medical Technicians were called by the New York City Police Department 48th precinct which rushed Plaintiff to St. Barnabas hospital for treatment.

99. That it was objectively unreasonable for the Defendants to have seized the Plaintiff by placing shackles on his legs, waist and hands inside the holding cell.

100. Plaintiff Santos was unreasonably seized by the Defendants who violated Plaintiff's Constitutional right to be free from unreasonable seizure including the use of excessive force.

101. Mr. Santos had not threatened the officers nor did Plaintiff pose a threat to have reasonably justified such seizure.

102. The Fourth Amendment forbids the use of substantial force against a non-threatening pretrial detainee who posed no threat to the safety of others.

103. For the reasons set forth herein, the Defendants officers are liable to the Plaintiff pursuant to 42 U.S.C Section 1983 for the physical injuries and emotional distress due to the officers' unreasonable and unlawful seizure and unreasonable use of force in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS, P. O. JAJI,
P.O. PEREZ, AND SGT. PENA PURSUANT TO 42 U.S.C SECTION 1983, FOR
VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER THE DUE PROCESS
CLAUSE OF THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES**

104. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "103", with the same force and effect as though more fully set forth at length herein.

105. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs' right to free from the deprivation of liberty without due process of law.

106. That the Defendant Officers 'detainment and seizure of the Plaintiffs, including the unreasonable use of force and unreasonable seizure deprived Plaintiff of his right to Due Process

of Law in violation of the Due Process Clause to the Fourteenth Amendment to the United States Constitution.

107. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment, and physical and mental pain and suffering.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANT POLICE OFFICERS, P. O. JAJI, P.O. PEREZ, AND SGT.
PENA FOR ASSAULT UNDER THE COMMON LAW OF THE STATE OF NEW
YORK.**

108. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "107", with the same force and effect as though more fully set forth at length herein

109. That the Defendants, their agents, servants and /or employees, without cause or justification, or the consent of the plaintiff, intentionally placed the Plaintiff in imminent fear of physical harm by the manner in which officers, Jaji , Perez and Pena threatened Mr. Santos inside the holding cell causing Plaintiff alarm and imminent threat to his safety and body

110. The officers approached Mr. Santos in a threatening manner causing Plaintiff Santos to fear for his safety.

111. Plaintiff was not free to leave.

112. That by reason of the foregoing the Plaintiff has been unlawfully injured and seeks compensation against the Defendant officers for inflicting unnecessary pain, suffering, physical and emotional distress.

113. Defendants officers' misconduct, threats and intimidation towards Mr. Santos was intentional.

114. That the Defendants intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by the Defendant officers' unlawful and unprivileged threat of force against the Plaintiff which cause Plaintiff to suffer severe emotional injuries for which Plaintiff now seeks compensation.

115. That Plaintiff had reasonable apprehension of imminent harm due to Defendant police officers' offensive actions and threats made against the Plaintiff.

116. The Defendant police officers intentionally placed Plaintiffs in reasonable fear of an imminent battery.

117.. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered humiliation, degradation, embarrassment pain, suffering, and mental anguish.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE DEFENDANTS,
POLICE OFFICERS JAJI, PEREZ, AND SGT. PENA FOR BATTERY AGAINST
THE PLAINTIFF PURSUANT TO THE COMMON LAW OF THE STATE OF NEW
YORK.**

118. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 117" with the same force and effect as though more fully set forth at length herein.

119. That by reason of the foregoing and by Defendants Jaji, Perez, and Sgt Pena' s misconduct of punching Plaintiff in his face and neck ,the officer intentionally caused Mr. Santos to suffer severe pain in his face, ear and body.

120. That at the time of the incident complained of herein, the Defendants were acting in their official capacity as police officers within the New York City Police Department, and acting within the scope of their employment as such, committed a willful, unlawful , unwarranted and intentional battery upon Plaintiff Jason Santos.

121. The by reason of the officers' unlawful, willful and wanton misconduct as more fully set forth above, the Defendant officers committed a willful, unlawful, unwarranted and intentional battery upon Plaintiff, Jason Santos.

122. That as a result of the foregoing battery on the part of the Defendants, Plaintiff were caused to suffer severe physical and emotional injuries.

123. That Plaintiff has suffered and will continue to suffer agony in body, and mind.

124. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and are hereby seeking compensation for his emotional pain and suffering.

125. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained damages alleged herein.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO COMMON LAW STATE OF NEW YORK UNDER RESPONDEAT
SUPERIOR**

126. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "125", with the same force and effect as though more fully set forth at length herein.

127. That the City of New York hired and supervised Defendants police officers Jaji, Perez, and Sgt Pena who together seized the Plaintiff and engaged in the assault, battery and unlawful willful and intentional use of force against the Plaintiff.

128. That the Defendants committed the wrongs stated herein without probable cause, and without legal justification all done while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

129. As a result, the City of New is liable for the unlawful acts of their employees, police officers Jaji, Perez, and Sgt Pena under the well settled and legally recognized doctrine of Respondeat Superior.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE
OFFICERS JAJI, PEREZ, AND SGT. PENA FOR INTENTIONAL INFLICTION OF
EMOTIONAL STRESS PURSUANT TO THE COMMON LAW OF THE STATE OF
NEW YORK.**

130. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “129” with the same force and effect as though more fully set forth at length herein.

131. That the Defendant police officers, Jaji, Perez, and Sgt Pena as agents, servants and/or employees of the New York City Police Department, engaged in actions the officers intended to inflict emotional trauma on the Plaintiff,

132. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

133. Mr. Santos’ claim for the Intentional Infliction of Emotional Distress was caused by the Defendants, Jaji, Perez, and Sgt Pena, as New York City Police officers who intentionally and without reason, privilege or probable cause knowingly and willfully unreasonably seized Plaintiff by placing shackles around Plaintiff’s legs, waist, and hands and left Plaintiff in a cell unable to move, returned and punched Mr. Santos in his face for complaining about the shockingly unreasonable treatment inside a holding cell within the 48th police precinct.

134. That the misconduct as more fully described above inflicted by police officers Jaji, Perez, and Sgt Pena was extreme and outrageous conduct, and intended to cause severe emotional distress.

135. That officers' misconduct directly caused Plaintiff to suffer severe pain to his face and hear for which Plaintiff suffered a temporary loss of his hearing in one ear.

136. The acts committed against the Plaintiff by the Defendant police officers were intended to cause the Plaintiff extreme physical damage to his mind and body.

137. That as a direct and proximate result of the misconduct and abuse of authority by the Defendants, Plaintiff has been injured and has sustained the damages hereinbefore alleged.

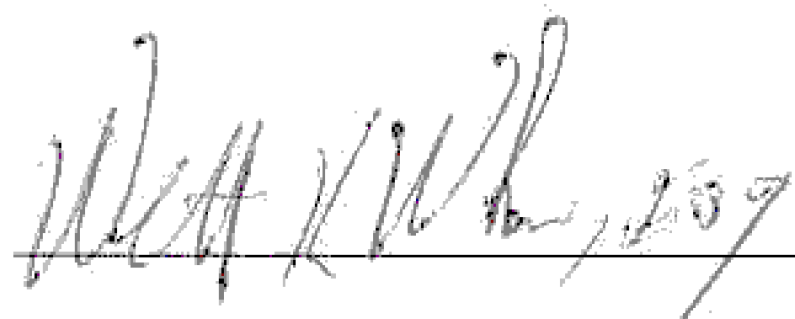
138. As a direct and proximate result, Mr. Santos suffered the injuries and damages described above.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully demands the following judgment be entered as follows:

- (A) Compensatory damages in the amount to be set by jury trial.
- (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages against officers Jaji, Perez, and Sgt Pena in the amount to be determined by jury trial.
- (C) An award to Plaintiff of the costs and disbursements herein.
- (D) An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- (E) Such other and further relief as this Court may deem just and proper.

Dated: February 9, 2023
Bronx, New York

By, 
Welton K. Wisham, Esq
The Law Office of Welton K. Wisham
1200 Waters Pl. Suite 105,
Bronx, New York 10561
(718) 924-3557
Attorney for the Plaintiff

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

JASON SANTOS

AFFIDAVIT

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND P. O. JAIL, 48th PRECINCT,
IN HIS INDIVIDUAL CAPACITY, P. O. PEREZ, 48TH PRECINCT,
IN HIS INDIVIDUAL CAPACITY AND SGT. PENA, SHIELD No. 5136,
48th PRECINCT, IN HIS INDIVIDUAL CAPACITY

Defendants,

X

STATE OF NEW YORK)

) ss.:

COUNTY OF BRONX)

I, **Jason Santos**, duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters deponent believes them to be true.

By

Jason Santos

Jason Santos

890 Prospect Ave Apt 606
Bronx, New York 10459

Sworn to before me

This 11/07/23 day of February, 2023

NOTARY PUBLIC

WILTON K. WISHAM, ESQ.
Notary Public, State of New York
No. 02111000406
Qualified in Bronx County
Commission Expires 1-28-2027

021026386733
1-28-2027